

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: September 17, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	16PR178756	<i>Estate of Frank Sanchez</i>	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2	26PR202816	<i>In the Matter of M.P.</i>	Click or scroll to line 2 for tentative ruling. Court will issue the final order.
LINE 3			

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Calendar line 1

Case Name: Estate of Frank Sanchez

Case No.: 16PR178756

INTRODUCTION

Prior to his death, Frank Sanchez (“Decedent”) and his surviving spouse, Caroline Sanchez (“Caroline”),¹ owned real property located at 2794 Eulalie Drive in San Jose, California (the “Eulalie Property”) as joint tenants with a right of survivorship. In 2015, Decedent signed a quitclaim deed severing the joint tenancy, resulting in Decedent and Caroline owning the property as tenants in common. In 2017, after Decedent’s death, Caroline filed a civil complaint in docket 17CV308535 for cancellation of the quitclaim deed. The court ultimately denied the request to cancel the quitclaim deed. In 2019, Caroline quitclaimed her interest in the Eulalie Property to herself as trustee of the Caroline Sanchez Trust (“Trust”).

In 2016, Leslie Ann Peralta (“Petitioner”), Decedent’s daughter, filed a petition for probate of will and for letters of administration for his estate. On January 30, 2026, after nearly a decade of litigation and administration of the estate, Petitioner filed her fifth amended petition for final distribution of Decedent’s estate (“Petition for Distribution”). James Larios (“Objector”), Caroline’s son and co-trustee of the Caroline Sanchez Trust,² objected to the Petition for Distribution, asserting that it is seeking to remove assets from the Caroline Sanchez Trust under the guise of a petition for final distribution in Decedent’s estate case. Objector contends that approximately \$800,000 currently held in a blocked account after the sale of the Eulalie Property belongs to Decedent’s estate and the Trust in equal shares but the Petition proposes that only \$111,764.58 be distributed to the Trust as a result of various disputed claims Petitioner makes against the Trust and includes in the final distribution. In short, it is Objector’s contention that Decedent’s estate owns one-half of the amount in the blocked account, or approximately \$400,000, while the other half belongs to the Trust and is not subject to distribution through this probate proceeding.

On April 1, 2026, Objector also filed a petition under Probate Code section 850 for an order confirming the Trust’s one half ownership of the proceeds in the blocked account (“850 Petition”). On August 4, 2026, Petitioner filed an objection to the 850 Petition. On August 10, 2026, Objector filed a reply.

On June 8, 2026, this court issued its written order granting Objector’s motion for judgment on the pleadings targeting the Petition for Distribution. The court found that half of the proceeds from the Eulalie Property belonged to the Trust. (See Order Re Motion for Judgment on the Pleadings, p. 5:22-23.) The court granted 20 days’ leave to amend as follows: “Petitioner may amend the petition for final distribution to remove the Trust’s half of the funds in the blocked account as an asset and to remove all claims the estate may have to those funds. Petitioner may also file any appropriate petition to seek reimbursement of funds from the Trust.” (*Id.* at p. 6:10-13, 15-16.) No amended Petition for Distribution has been filed and Petitioner has not filed a petition to seek reimbursement from the Trust.

¹ Because some of the individuals involved in this case share the same last name, the court will refer to them by their first names. No disrespect is intended.

² Caroline passed away in 2023.

DISCUSSION

The trustee may bring a petition for return of property “[w]here the trustee has a claim to real or personal property, title to or possession of which is held by another.” (Prob. Code, § 850 transfer, or other order should be made, the court shall make an order authorizing and directing the personal representative or other fiduciary, or the person having title to or possession of the property, to execute a conveyance or transfer to the person entitled thereto, or granting other appropriate relief.” (Prob. Code, § 856.

As mentioned above, the court has already determined that the Trust is entitled to 50 percent of the proceeds in the blocked account. Petitioner does not dispute that a June 18, 2018 judgment established that half of the proceeds of the Eulalie Property belonged to the estate and half belonged to Caroline Sanchez. (Petitioner’s Objection to 850 Petition, p. 4:3-6.) Nonetheless, Petitioner argues that the estate “has asserted [via the Petition for Distribution] related claims for accounting, reimbursement, contribution, and appropriate adjustments arising from the parties’ ownership and use of the Eulalie Property. Those claims include Decedent Frank J. Sanchez’s alleged separate-property contributions to the Eulalie Property, an equitable occupancy-value adjustment relating to Caroline Sanchez’s exclusive occupancy of the property, and reverse-mortgage obligations and other encumbrances allegedly paid or discharged using Estate-related funds.” (*Id.* at pp. 2:19-24, 5:3-4.) She contends that the 850 Petition improperly assumes that the 50 percent share of the proceeds is automatically distributable to the Trust and she asserts that the court may litigate her disputed claims to these offsets to the amount to which the Trust is entitled. She further asserts that the court must consider her Petition for Distribution in conjunction with Objector’s 850 Petition to determine the amount that should be distributed to the Trust.

The problem with this argument is that the court has granted a motion for judgment on the pleadings as to the Petition for Distribution. Although the court granted 20 days’ leave to amend, Petitioner did not file an amended petition. While the procedures for entering judgment on the Petition for Distribution have not yet been followed, (see Code Civ. Proc., § 438, subd. (i)), the court has already determined that the offsets Petitioner seeks in the Petition for Distribution may not be sought via the Petition for Distribution. Accordingly, Petitioner’s objection, which relies solely on the Petition for Distribution, is without merit. As the court has determined that Objector, as trustee, is entitled to half of the proceeds, the court **OVERRULES** the objection.

Objector requests \$400,460.18 plus interest but he does not cite authority for the request for interest, nor does he state the amount of interest sought. Accordingly, the request for interest is **DENIED**.

CONCLUSION

Objector’s 850 Petition is **GRANTED IN PART** as to the request for return of the \$400,460.18 in proceeds. Petitioner is ordered to turn over \$400,460.18 from the blocked account to Objector’s counsel to be placed in the Trust within 30 days of the date of this order. As the prevailing party, Objector is awarded costs subject to the timely filing of a memorandum of costs. Petitioner may seek the requested offsets via any applicable legal means save for a petition for final distribution in this estate case.

IT IS SO ORDERED.

Calendar line 2

Case Name: In the Matter of M.P.

Case No.: 26PR202816

INTRODUCTION

Petitioners are 19 minors, the estates of two individuals, and one adult plaintiff who were allegedly harmed by Defendants Character Technologies, Inc. (“CTI”), Google LLC, Noam Shazeer, and Daniel De Freitas Adiwardana. Petitioners allege that children suffered catastrophic psychological injuries through their use of CTI’s chatbot, including suicide, attempted suicide, self-harm, sexualized role play, violence, traumatic emotional injury, and other severe psychiatric harm. The parties have reached a settlement. On June 17, 2026 and on July 2, 2026, Petitioners filed an ex parte petition for approval of the settlement agreement in the instant minor’s compromise case. On July 2, 2026, Petitioners filed a supplemental information document. This court has signed the order granting the ex parte petition approving the settlement agreement.

Currently before the court is Petitioner’s unopposed motion to seal portions of the ex parte petition. The motion previously came on calendar on August 19, 2026 at 1:30 p.m. The court (Hon. Eunice Lee) issued a tentative ruling denying the motion without prejudice but allowing the names of the minor plaintiffs to be redacted. However, at the hearing, the parties requested that the court continue the hearing on the motion to allow for supplemental briefing regarding the propriety of sealing the information at issue. On September 10, 2026, Petitioners filed their supplemental brief indicating that the parties have further reduced the number of items to be redacted and providing additional legal authority regarding the sealing requests.

DISCUSSION

I. Petitioners’ Request for Judicial Notice

Petitioners request judicial notice of the First Supplement to the Ex Parte Petition for Approval of Global Settlement Agreement Pursuant to Probate Code §§ 3500, 3600; Code of Civil Procedure §§ 372 and 187, submitted on July 2, 2026 to establish that Defendants, Estate Plaintiffs, and Adult Plaintiffs waived notice of the hearing on the motion to seal. The court GRANTS judicial notice. (See Evid. Code, § 452, subd. (d).) However, the court notes that Petitioners failed to provide a copy of that document attached to the request as required by Rules of Court, rule 3.1306(c), which provides, “A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material.”

II. Legal Background

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, rule 2.550(c).) However, “[t]he rules [Cal. Rules of Court, rule 2.550 and 2.551] ‘recognize the First Amendment right of access to documents used at trial or as a basis of adjudication.’ [Citation.]” (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 84.)

“A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal.

Rules of Court, rule 2.551(a).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d), formatting omitted.)

“Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*In re Providian*).) In addition, confidential matters relating to the business operations of a party may be sealed where public revelation of the information would interfere with the party’s ability to effectively compete in the marketplace. (See *Universal City Studios, Inc. v. Superior Court (Unity Pictures Corp.)* (2003) 110 Cal.App.4th 1273, 1285-1286.)

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party’s overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (d)(5).) In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*In re Providian, supra*, 96 Cal.App.4th at p. 309.)

III. Merits of the Motion

In their supplemental brief, Petitioner contend that they have narrowed their redaction requests such that they now seek to protect only (1) the identities of the minor plaintiffs (not including the estate plaintiffs and adult plaintiff), (2) descriptions of the injuries suffered by all plaintiffs, and (3) the settlement agreement. Petitioners have provided a redacted version of the ex parte petition as Exhibit A to the declaration of their counsel in support of Petitioners’ supplemental brief. A redacted version of the supplemental information document is attached as Exhibit B. Petitioners seek to seal the entirety of the settlement agreement itself. Should the court find that the settlement agreement does not merit sealing in its entirety, Petitioners have provided Exhibit C, a more minimally redacted version of the settlement agreement.

A. Identities of the Minor Plaintiffs

Petitioners contend that the names of the minor plaintiffs should be sealed. The names of the minor plaintiffs appear on the signature pages for the settlement agreement and on Exhibit 1 to the settlement agreement, which contains the full names of both the minors and their guardians. The names of the minor plaintiffs appear as initials in the caption of the ex parte petition. The proposed redacted version of the ex parte petition would leave the initials in the caption but the settlement agreement is redacted to remove the names. Petitioners also argue that the names of their guardians should be redacted to avoid the possibility of the minors being identified. As drafted, the caption of the proposed redacted version of the ex parte petition anonymizes the guardians’ names using initials. The redacted version of the ex parte petition also redacts the guardians’ names and signatures on the settlement agreement itself.

“[B]efore authorizing a civil litigant to use a pseudonym, the trial court must apply the ‘overriding interest test’ outlined in *NBC Subsidiary*³ and California Rules of Court, rule 2.550(d). [Citation.] . . . ‘[I]n deciding the issue the court must bear in mind the critical importance of the public’s right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur ‘only in the rarest of circumstances.’” (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 238.) “Courts in California have recognized at least two interests relevant here as potentially sufficient to allow for redaction of names. These are: first, maintaining privacy of highly sensitive and potentially embarrassing personal information (*In re M.T.* (2024) 106 Cal.App.5th 322, 336-341 [] [records revealing gender identity change]; [*Oiye v. Fox* (2012) 211 Cal.App.4th 1036,] 1068 [medical and psychological records]); and second, protecting against the risk of retaliatory harm [citation].” (*Roe v. Smith, supra*, 116 Cal.App.5th at p. 239; see also *Globe Newspaper Co. v. Superior Court* (1982) 457 U.S. 596, 607 [The interest in “safeguarding the physical and psychological well-being of a minor . . . is a compelling one.”], fn. omitted.)

Here, Petitioners have not requested leave to proceed using pseudonyms. Additionally, they rely on Code of Civil Procedure section 372.5 for the proposition that a guardian ad litem’s name may be redacted. But, the guardians have neither petitioned the court to be named guardian ad litem, nor have they followed the steps to proceed under a pseudonym pursuant to Code of Civil Procedure section 372.5.

Nonetheless, Petitioners contend that the minors’ right to privacy is at issue and that, should their identities be revealed, they are at risk of being re-traumatized. They analogize the instant cases to cases such as *People v. Jackson* (2005) 128 Cal.App.4th 1009, 1023, wherein the appellate court held that protecting minor victims of sex crimes from exposure of the embarrassing details of the crimes, in addition to other considerations, justified sealing of information in a search warrant. Although not a perfect analogy, the court finds the comparison apt. Moreover, the court finds that the overriding interests in protecting the privacy of the children and protecting them from harm is served by redacting their names, including the names of their guardians, as it is possible the children could be identified based on the guardians’ names. The proposed redactions are narrowly tailored to avoid exposing the identities of the minor plaintiffs. Accordingly, the motion is GRANTED as to the names of the minor plaintiffs and their guardians.

B. Descriptions of the Injuries

Petitioners also seek to seal descriptions of their injuries on the same grounds identified above, namely their right to privacy and protecting them from re-traumatization. Petitioners again rely on *People v. Jackson, supra*, 128 Cal.App.4th at p. 1023 in which the Court of Appeal upheld a sealing order for a search warrant affidavit stating, “To release the details of the alleged [sexual molestation] crimes to the public would likely be embarrassing, if not devastating, to the minors.”

But, here, the descriptions of the injuries in this case are extremely general. For example, paragraph 2 of the ex parte petition states, “Petitioners allege that children suffered catastrophic psychological injuries through their use of the CTI’s chatbot, including suicide, attempted suicide, self-harm, sexualized role play, violence, traumatic emotional injury, and

³ *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178 (*NBC Subsidiary*).

other severe psychiatric harm.” Paragraph 35 of the ex parte petition states, “As indicated above, this case involves children that committed suicide or otherwise suffered catastrophic psychological injuries through their use of CTI’s chatbot, including attempted suicide, self-harm, sexualized role play, violence, traumatic emotional injury, and other severe psychiatric harm.” With the minors’ names redacted, this very general information does not appear to be sufficiently private or traumatic to justify redaction. Notably, individuals who may seek to access the documents at issue would not be able to connect up the identities of the minors with any particular injury that occurred based on these general statements. Here, unlike in *People v. Jackson*, the record does not contain “details” of the plaintiffs’ injuries. Accordingly, the motion is DENIED as to the descriptions of the injuries.

C. The Settlement Agreement

Petitioners also seek to seal the settlement agreement or, in the alternative, certain portions of the settlement agreement they deem “non-standard.” A “contractual obligation not to disclose can constitute an overriding interest within the meaning of” rule 2.550. (*Universal City Studios, supra*, 110 Cal.App.4th at p. 1283 [discussing predecessor to rule 2.550]; see also *Jalali v. Root* (2003) 109 Cal.App.4th 1768, 1784 [bargained-for confidentiality of a settlement agreement justifies sealing].) For the purposes of the overriding interest requirement, the party moving to seal must not only identify an overriding interest but also establish a substantial probability that the interest will be prejudiced absent sealing. (*Universal City Studios, supra*, 110 Cal.App.4th at p. 1283.)

In *Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 793, the California Supreme Court explained, “ ‘The privacy of a settlement is generally understood and accepted in our legal system, which favors settlement and therefore supports attendant needs for confidentiality.’ [Citation.] Routine public disclosure of private settlement terms would ‘chill the parties’ ability in many cases to settle the action before trial. Such a result runs contrary to the strong public policy of this state favoring settlement of actions.’ [Citation.]”

Here, it is clear that confidentiality was an important term of the settlement agreement, as Petitioners contend. (See Ex Parte Petition, Ex. A [Settlement Agreement], § IX [acknowledging confidentiality and indicating that the parties might not have entered into the agreement in the absence of commitment to confidentiality].) Moreover, the terms of the settlement agreement also speak to the financial condition of the plaintiffs. The law is well established that the right to privacy extends to a person’s financial affairs. (*Moskowitz v. Superior Court* (1982) 137 Cal.App.3d 313, 315 [“Personal financial information comes within the zone of privacy protected by article I, section 1 of the California Constitution.”]; *Fortunato v. Superior Court* (2003) 114 Cal.App.4th 475, 481 [stating, “there is a right to privacy in confidential customer information whatever form it takes, whether that form be tax returns, checks, statements, or other account information”]; see also *Valley Bank of Nevada v. Sup. Ct.* (1975) 15 Cal.3d 652, 658.)

Accordingly, the court finds that Petitioners have established overriding interests that support sealing the settlement agreement, namely, the confidentiality provisions of the agreement and the plaintiffs’ rights to financial privacy. As to the risk of prejudicing these interests, Petitioners contend that public disclosure would jeopardize the agreement and risk chilling future settlements of similar claims. The court finds these arguments persuasive. Moreover, the redacted version of the settlement agreement attached to the declaration of Petitioners’ counsel in support of the supplemental brief as Exhibit C is narrowly redacted to

protect confidential material while still allowing public access to the remainder of the agreement. Accordingly, the motion is GRANTED to the extent it seeks to file the redacted version of the settlement agreement contained in Exhibit C.

**D. The Court Declines to Order Future Filings Sealed Without the Need to
File a Motion to Seal**

Petitioners also seek an order that other, future court filings be filed under seal without the need for motions establishing the requirements for sealing. They maintain that the settlement “will fund individual special needs trusts and minors’ compromise vehicles for the benefit of the Petitioner-children. Each of those vehicles will require periodic court-supervised accountings, bond calculations, and related petitions, every one of which will necessarily disclose, or risk disclosing, the same Confidential Information sought to be sealed here.” (Supplemental Brief in Support of Motion to Seal, p. 17:4-8.) They contend that requiring motions to seal for each filing will result in reducing the settlement fund available to the plaintiffs. But, as mentioned above, court records are presumptively open to the public and Rules of Court, rule 2.550(d) requires that the court make express factual findings, including that the proposed redactions are narrowly tailored, as to each record. (Cal. Rules of Court, rule 2.550(c) [court documents are presumptively public] & (d) [“The court may order that *a record* be filed under seal only if it expressly finds facts that establish: [required factual findings].”].) Accordingly, the court declines to make such a ruling.

CONCLUSION

The motion to seal is GRANTED IN PART as to the names of the minor plaintiffs and their guardians and to the extent it seeks to redact the settlement agreement as found in Exhibit C and DENIED IN PART as to the descriptions of the injuries and to the extent it requests that future filings may be made under seal without the need for a motion to seal.